

# DIRECTORY



**T**he legal milestones set out in this book have formed the backbone of modern law. These key developments owe a debt not just to history's great legal scholars, but also to monarchs, theologians, politicians, and campaigners who contributed to other initiatives, precedents, and pieces of legislation. Rulers such as Clovis and Genghis Khan imposed national civil law codes that influenced later governments. Islamic scholars produced the *Fatawa-e-Alamgiri* that inspired the codification of laws across South Asia, and President F. W. de Klerk took a step toward greater equality when he oversaw the dismantling of South Africa's apartheid laws. Each of the legal advances listed below has contributed to the evolution of modern lawmaking.

## THE DRACONIAN CODE

621 BCE

In a bid to reduce arbitrary punishments and blood feuds, the Athenian aristocrat Draco was asked to compile the first written law code for the city-state of Athens. Draco's code favored the powerful aristocrats and meted out severe punishments for even minor crimes. Athenians soon rallied against the extreme penalties. In c. 594 BCE, the Athenian magistrate Solon repealed most of Draco's laws, retaining only his punishment of banishment for homicide. Today, anything that is perceived as overly harsh is called "draconian."

**See also:** Plato's *Laws* 31

- Aristotle and natural law 32–33

## BOOKS OF PUNISHMENTS

536 BCE

The earliest known Chinese laws are the "books of punishments" (*hsing shu*), which Tzu-ch'an, prime minister of the state of Cheng, had inscribed onto a set of bronze tripod

vessels. The vessels did not survive, but they are said to have listed 22 harsh punishments such as hard labor, mutilation, castration, and death. Evidence of their use and the opposition they aroused survives in a letter of protest from an official in a neighboring state.

**See also:** Zhou dynasty China 24

- Confucianism, Daoism, and Legalism 26–29

## THE TRIAL OF SOCRATES

399 BCE

The philosopher Socrates became a target when he positioned himself against Athenian democracy by arguing that, instead of rule by majority opinion, only the truly learned and wise should hold power. His teachings inspired many young Athenians to question the status quo, and in 399 BCE, three orators accused him of "impiety" and "corrupting the young." When a jury of 500 men, selected by drawing lots, found Socrates guilty, the philosopher was sentenced to death by the self-administration of poisonous hemlock.

**See also:** Plato's *Laws* 31

- Aristotle and natural law 32–33
- The trial of Galileo Galilei 93

## KAPU

c. 500 CE

The ancient Hawaiian *kapu* system provided accepted codes for much of everyday life—religion, gender roles, lifestyle, and politics. Similar to the Polynesian tradition of taboo, *kapu* translates as "forbidden," but it can also mean "sacred." Breaking *kapu* invoked harsh penalties, even if the offense was unintentional.

By the early 19th century, belief in the system had declined. In 1819, King Kamehameha II abolished it, publicly breaking *kapu* by allowing men and women to dine together.

**See also:** Confucianism, Daoism, and Legalism 26–29

## THE LAWS OF ÆTHELBERT

600 CE

The earliest known piece of English law is a law code drawn up by Æthelbert, king of Kent, the first